

MASTER SERVICES AGREEMENT

This Master Services Agreement (“Agreement”), dated as of the last date signed below (“Effective Date”), is entered into by and between:

LCAI DUNA, a Wyoming Decentralized Unincorporated Nonprofit Association, with its principal place of business at 30 N Gould St Ste N, Sheridan, WY 82801, USA (“Association” or “LCAI” or “DAO”), and **Phantom Protocol AG** (trading as Turtle.Club), a company incorporated under the laws of Switzerland, with its registered office at Gotthardstrasse 26, CH-6300 Zug, Switzerland, UID / VAT number CHE-258.098.477, contracting through its service brand Lunar Strategy, part of the Turtle Club group, and in this Agreement represented by its authorized representative Jack Haldorsson, Managing Partner, Lunar Strategy, hereafter “Lunar” or the “Service Provider”.

Association desires that Service Provider provide, and Service Provider agrees to provide, certain professional services to Association (and its affiliates as Association may designate from time to time). In consideration of the mutual covenants contained herein, the parties agree as follows:

1. Scope of Services Service Provider shall provide the services and deliverables (“Services”) described in one or more Statements of Work (“Statement of Work” or “SOW”). Each SOW shall form part of this Agreement, expressly reference this Agreement, and be signed by authorized representatives of both parties. Each SOW shall describe the specific Services, fees, timetable, and any special terms. In the event of conflict between this Agreement and an SOW, this Agreement controls unless the SOW expressly states otherwise.

2. Changes Either party may propose changes to the Services, deliverables, schedule, or other terms of an SOW. No change shall be effective unless set forth in a written Change Order signed by authorized representatives of both parties, and where required by the LCAI DUNA Governing principles, authorized by a separate passed governance proposal. Association shall have no obligation to pay for any work performed outside the scope of an executed SOW or Change Order.

3. Term This Agreement shall commence on the Effective Date and continue for an initial term of one (1) year, after which it shall terminate automatically and shall not renew unless, before the end of that term, a DAO proposal authorizing renewal is passed in accordance with the DUNA’s governing process and authorized representatives of both parties execute a written renewal or a new agreement covering the renewal term. If either condition is not met, this Agreement expires at the end of the one-year term with no further action required. Individual SOWs may have a shorter duration as stated therein, but no SOW shall extend beyond the term of this Agreement unless renewal has been authorized and signed as set forth above. The term of any SOW may be extended only by written agreement of the parties and only while this Agreement remains in effect.

4. Fees and Expenses Association shall pay the fees specified in each SOW (the “Fees”). Fee arrangements may include hourly rates, fixed fees, milestone-based payments, or monthly retainers as specified in the applicable SOW. Unless otherwise stated in an SOW, Fees are

exclusive of pre-approved travel and out-of-pocket expenses, which shall be reimbursed at actual cost in accordance with any expense guidelines stated in the applicable SOW or as otherwise agreed in writing.

5. Invoices and Payment Service Provider shall invoice Association in accordance with the billing schedule set forth in the applicable SOW. Invoices shall describe the Services performed and the portion of Fees due. Undisputed invoices are due Net Thirty (30) days from receipt, unless a different payment schedule is expressly set forth in the applicable SOW. No terms on any invoice shall amend this Agreement. Association may withhold payment of any disputed amount pending resolution.

6. Ownership of Project Deliverables Association shall be the sole and exclusive owner of all Project Deliverables. "Project Deliverables" means (a) all documents, data, analyses, software, code, designs, and work product developed specifically for Association under this Agreement or any SOW, and (b) all intellectual property rights therein. Project Deliverables are deemed "works made for hire." To the extent any Project Deliverable is not a work made for hire, Service Provider hereby irrevocably assigns and transfers all right, title, and interest in such Project Deliverables to Association without additional consideration. Service Provider shall execute any documents reasonably requested to perfect such ownership.

Service Provider retains ownership of its pre-existing materials, methodologies, and general know-how ("Service Provider Materials"), provided that Association receives a perpetual, royalty-free, worldwide, non-exclusive license to use, copy, modify, and create derivative works of any Service Provider Materials incorporated into Project Deliverables solely for Association's internal business purposes.

7. Independent Contractor Status Service Provider is an independent contractor. Nothing in this Agreement creates an employment, partnership, joint venture, or agency relationship. Service Provider is solely responsible for all compensation, taxes, benefits, insurance, and compliance obligations of its personnel and subcontractors. Service Provider shall indemnify and hold Association harmless from any claims arising from misclassification or failure to withhold taxes or provide benefits.

8. Representations and Warranties Service Provider represents, warrants, and covenants that: (a) the Services will be performed in a professional and workmanlike manner consistent with industry standards; (b) Project Deliverables will be free from liens and encumbrances and will not infringe any third-party intellectual property rights; (c) it has (and will maintain) adequate personnel, skills, and resources to perform the Services; (d) it is duly organized, validly existing, and in good standing under the laws of its jurisdiction of organization and has full power and authority to enter this Agreement; (e) it will comply with all applicable laws in performing the Services; and (f) if any Services or Project Deliverables fail to conform to the foregoing warranties, Service Provider shall promptly re-perform the affected Services or correct the affected Project Deliverables at no additional cost to Association

8A. Information Security and Data Protection.

Service Provider shall implement and maintain commercially reasonable administrative, technical, and physical safeguards designed to protect Association Data and Confidential Information against unauthorized access, disclosure, alteration, loss, or destruction.

Service Provider shall comply with all applicable privacy, cybersecurity, and data protection laws and regulations applicable to the Services.

Service Provider shall notify Association without undue delay, and in no event later than seventy-two (72) hours after becoming aware, of any actual or reasonably suspected security incident involving Association Data or Confidential Information.

Association Data shall remain the exclusive property of Association.

9. Confidentiality Service Provider shall protect Association's Confidential Information with at least the same degree of care it uses for its own similar information (but no less than reasonable care) and shall not disclose it to third parties except to its employees, contractors, or agents with a need to know who are bound by confidentiality obligations at least as protective as those herein.

Association shall protect Service Provider's Confidential Information using reasonable care under the circumstances and shall take reasonable measures to limit access to individuals having a legitimate operational, governance, legal, or business need to know such information.

Association is a Wyoming Decentralized Unincorporated Nonprofit Association whose governance activities may involve community participation and transparency practices. Association shall use reasonable efforts to compartmentalize, anonymize, redact, or otherwise safeguard Confidential Information prior to any disclosure beyond individuals with a legitimate need to know.

"Confidential Information" means all non-public information disclosed by one party to the other, including business, technical, financial, operational, or proprietary information, whether marked confidential or that a reasonable person would understand to be confidential.

Obligations survive for five (5) years after termination (and perpetually for trade secrets). Exceptions include information that: (a) is or becomes public through no fault of the receiving party; (b) was already known by the receiving party; (c) is independently developed; or (d) is required to be disclosed by law (with prior notice if legally permitted).

Service Provider acknowledges that Association may, from time to time, share certain documents, proposals, or information with its community or the public as part of its governance and transparency practices. Once information has been reasonably redacted or compartmentalized and released, the non-confidential portions may become public.

Upon request or termination, the receiving party shall return or destroy Confidential Information (except for one archival copy retained for legal or compliance purposes).

Nothing in this Agreement authorizes disclosure of Confidential Information except as expressly permitted herein.

10. Indemnification Service Provider shall indemnify, defend, and hold harmless the Association and its Administrator, Ministerial Agent, officers, authorized representatives, employees, agents, successors, and assigns (collectively, "Association Indemnitees") from and against any third-party claims, damages, judgments, liabilities, penalties, and reasonable attorneys' fees and expenses to the extent arising from: (a) Service Provider's material breach of this Agreement or any SOW; (b) Service Provider's negligence, gross negligence, or willful misconduct; (c) any allegation that the Services or any deliverable created or commissioned by Service Provider infringes or misappropriates a third party's intellectual property or other proprietary rights; (d) injury to persons or property caused by Service Provider's personnel while performing the Services; (e) claims by Service Provider's employees, contractors, or subcontractors, including claims for compensation; or (f) Service Provider's violation of applicable law in performing the Services. Service Provider shall have no obligation to the extent a claim results from an Association Indemnitee's negligence, willful misconduct, material breach of this Agreement, unauthorized modification or use of a deliverable, or materials supplied by the Association.

The Association shall indemnify, defend, and hold harmless Service Provider and its officers, employees, and authorized representatives from and against any third-party claims, damages, judgments, liabilities, penalties, and reasonable attorneys' fees and expenses to the extent arising from: (a) Association-provided materials that infringe or misappropriate a third party's intellectual property rights; (b) the Association's willful misconduct; or (c) the Association's violation of applicable law in connection with this Agreement. The Association shall have no obligation to the extent a claim results from Service Provider's negligence, willful misconduct, material breach, violation of law, or unauthorized use or modification of Association-provided materials. This indemnity is an obligation of the Association only. Service Provider shall not assert any indemnification or other claim against the Association's members in their capacity as members.

The party seeking indemnification shall give prompt written notice of the third-party claim, provided that delay reduces the indemnifying party's obligations only to the extent the delay materially prejudices the defense; provide reasonable cooperation at the indemnifying party's expense; and allow the indemnifying party to control the defense with qualified counsel reasonably acceptable to the indemnified party. The indemnified party may participate with its own counsel at its own expense. The indemnifying party may not settle a claim without the indemnified party's prior written consent if the settlement requires an admission of fault, imposes any obligation on the indemnified party, does not include a complete and unconditional release of the indemnified party, or could reasonably harm the indemnified party's rights, governance authority, or reputation. Consent shall not be unreasonably withheld, conditioned, or delayed. If Service Provider fails to assume a timely defense of a claim for which it is responsible, the Association may assume the defense and recover reasonable costs from Service Provider.

These indemnification obligations survive termination or expiration of this Agreement for claims arising from acts or omissions during the term. No SOW may reduce Service Provider's indemnification or liability obligations under this Agreement unless that SOW expressly amends this Section and is executed as an amendment to this Agreement.

11. Insurance Service Provider shall maintain such insurance coverages as are customary and appropriate for the nature of the Services and Service Provider's jurisdiction of operation, as specified in the applicable SOW.

11A. Audit and Verification Rights. Upon reasonable written notice and not more than once annually, Association may request documentation reasonably necessary to verify Service Provider's compliance with this Agreement, including evidence of insurance coverage, subcontractor compliance obligations, and material information security controls. Service Provider shall cooperate in good faith with such requests.

12. Termination

12A. By Association. Association may terminate this Agreement or any SOW: (a) for material breach by Service Provider that remains uncured for ten (10) days after written notice (or immediately if the breach is not capable of cure); (b) immediately upon Service Provider's insolvency, bankruptcy, or cessation of business; or (c) for convenience, upon thirty (30) days' prior written notice for this Agreement, and upon fifteen (15) days' prior written notice for any individual SOW, unless that SOW states a different notice period, in which case the SOW controls for that SOW only.

12B. By Service Provider. Service Provider may terminate this Agreement only if Association fails to pay undisputed Fees and such failure continues for thirty (30) days after written notice.

12C. Effect of Termination. Upon termination, Service Provider shall deliver all completed (and work-in-process) Project Deliverables and return or destroy Association's Confidential Information. Association shall pay for Services satisfactorily performed through the effective date of termination. Sections 6 through 19C, including intellectual property ownership, confidentiality, information security obligations, indemnification, limitation of liability, dispute resolution, accrued payment obligations, records retention obligations, and any provisions that by their nature should survive, shall survive termination.

12D. Deliverable Acceptance. Unless otherwise stated in an SOW, Association shall have fifteen (15) business days following delivery of a Project Deliverable to review and either accept the Deliverable or provide written notice specifying material nonconformities. Service Provider shall promptly correct such nonconformities and resubmit the Deliverable. A Deliverable shall be deemed accepted upon Association's written acceptance or beneficial production use, excluding testing and evaluation activities.

13. Assignment and Subcontracting Service Provider may not assign this Agreement or any SOW without Association's prior written consent. Service Provider may subcontract portions of

the Services only with Association's prior written consent and remains fully responsible for all subcontracted work and compliance by subcontractors.

13A. Association Policies. To the extent Service Provider accesses Association systems, facilities, repositories, networks, software platforms, collaboration tools, or data, Service Provider shall comply with Association's reasonable written information security, access control, and operational policies provided to Service Provider.

13B. Records Retention. Service Provider shall maintain records relating to the Services, invoices, expenses, and performance obligations for no less than three (3) years following completion or termination of the applicable SOW unless a longer period is required by law.

14. Governing Law and Dispute Resolution This Agreement is governed by the laws of the State of Wyoming, without regard to conflict-of-laws principles. The parties irrevocably submit to the exclusive jurisdiction of the state and federal courts located in Sheridan County, Wyoming.

Before filing any lawsuit, the parties shall attempt in good faith to resolve disputes through negotiation by authorized representatives, followed by mediation if necessary.

15. Notices All notices under this Agreement shall be in writing and delivered by email (with confirmation of receipt), overnight courier, or registered/certified mail. Notices shall be sent to the addresses (including email addresses) set forth below, or to such other address as a party may designate in writing.

Notices are deemed given: (a) when sent by email, on the date of transmission if sent during normal business hours of the recipient, or on the next business day if sent outside normal business hours; (b) one (1) business day after deposit with an internationally recognized overnight courier; or (c) five (5) business days after mailing by registered or certified mail.

Each party is responsible for keeping its contact information current.

Association email: _____

Service Provider email: _____

16. Export Controls and Sanctions Service Provider represents and warrants that it is not located in, organized under the laws of, or ordinarily resident in any country subject to comprehensive U.S. sanctions, and that it is not a person or entity listed on any U.S. restricted party list. Service Provider shall not provide any Services in violation of applicable export control or sanctions laws.

17. Governing Language This Agreement is executed in the English language. In the event of any translation into another language, the English version shall control.

18. Taxes Each party is responsible for taxes imposed on it by reason of this Agreement, including income, franchise, and similar taxes on its own net income. Fees are exclusive of any value-added, goods-and-services, sales, or similar transaction taxes that Service Provider is legally required to charge; Service Provider shall invoice any such tax separately and remit it to the proper authority. The Association shall not be responsible for taxes on Service Provider's net income, employees, or subcontractors.

If applicable law requires the Association to withhold tax from a payment, the Association may deduct that amount, pay it to the relevant authority, and provide Service Provider with reasonably available documentation of the withholding. The amount payable after required withholding is payment in full of that invoice. Service Provider shall timely provide any tax forms reasonably requested (including IRS Form W-8BEN-E or W-9, as applicable) so the Association can determine whether withholding applies and whether a treaty reduction is available. The parties shall cooperate in good faith to lawfully minimize withholding.

Nothing in this Agreement constitutes a representation that the Association is exempt from tax or from withholding. No payment shall be grossed up for taxes except as required by a change in law and only if the parties agree in writing.

19. Entire Agreement; Amendments; Waiver; Severability This Agreement (including all SOWs) constitutes the entire agreement between the parties and supersedes all prior agreements and understandings. No amendment is effective unless in writing and signed by both parties. No waiver is effective unless in writing. If any provision is held invalid, the remainder continues in full force.

19A. Equitable Relief. Each party acknowledges that a breach of Sections 6, 8A, or 9 may cause irreparable harm for which monetary damages may be inadequate. Accordingly, the non-breaching party may seek injunctive relief, specific performance, and other equitable remedies.

19B. No Third-Party Beneficiaries. Except for persons expressly entitled to indemnification under Section 10, this Agreement is solely for the benefit of the parties and creates no rights in any third party.

19C. Cumulative Remedies. Except as expressly limited herein, all rights and remedies under this Agreement are cumulative and in addition to any rights and remedies available at law or in equity

20. Counterparts; Electronic Signatures This Agreement may be executed in counterparts (including electronic/PDF signatures), each of which is deemed an original and all of which together constitute one instrument.

21. Force Majeure Neither party is liable for failure to perform due to causes beyond its reasonable control (acts of God, war, terrorism, epidemic, government action, etc.), provided the affected party gives prompt notice and uses reasonable efforts to resume performance. If the force majeure continues more than thirty (30) days, the other party may terminate the affected SOW or this Agreement upon written notice.

22. Use of Name Service Provider shall not use Association's name, logo, or trademarks in any advertising, press release, or public communication without Association's prior written consent.

23. Limited Liability. Except for (i) a party's indemnification obligations for third-party claims, (ii) infringement or misappropriation of intellectual property, (iii) breach of confidentiality, (iv) fraud, gross negligence, or willful misconduct, and (v) the Association's obligation to pay undisputed fees, each party's total liability under this Agreement shall not exceed the fees paid or payable in the twelve (12) months preceding the event giving rise to the claim. Neither party shall be liable for indirect, incidental, special, consequential, or punitive damages, except to the extent those damages arise from the exceptions in this paragraph.

23A. No Personal Liability Service Provider acknowledges that Association is a Wyoming Decentralized Unincorporated Nonprofit Association. No member, contributor, participant, governance participant, Administrator, Ministerial Agent, officer, representative, committee member, agent, or affiliate of Association shall have any personal liability arising out of or relating to this Agreement. Service Provider's sole recourse for any claim arising out of or relating to this Agreement shall be against Association and its assets, if any.

23B. Authority of Representatives Service Provider acknowledges that Association conducts its affairs through representatives authorized pursuant to its governing documents and governance processes. Execution of this Agreement by such authorized representatives shall constitute valid and binding authorization on behalf of Association, and Service Provider waives any claim that such authorization was ineffective due to the internal governance procedures of Association.

IN WITNESS WHEREOF, the parties have executed this Master Services Agreement as of the Effective Date.

LCAI DUNA

By: _____ Name: _____ Title: _____
Date: _____

SERVICE PROVIDER

By: _____ Name: _____ Title: _____
Date: _____